

SUPREME COURT OF THE STATE OF NEW YORK
NEW YORK COUNTY

SUMMONS

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AMY KRAKOW and GARY KRAKOW,

Index No.:

Plaintiffs,

The basis of venue is:

-against-

Location of Incident

Plaintiff designates New York
County as the place of trial.

THE CITY OF NEW YORK, POLICE OFFICER
KARANJA JEFFERSON, Shield # 12644, POLICE
OFFICER JOHN DOE #1, (name and number of who is
unknown at present), and POLICE OFFICERS JOHN
DOES #2-4 (names and number of who is unknown at
present), and other unidentified members of the New York
City Police Department, CITY MARSHALL DARSCH,
and the NEW YORK CITY MARSHALS.

Defendants.

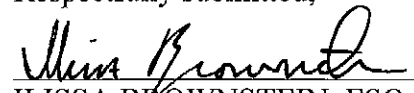
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To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
November 1, 2013

Respectfully submitted,


ILISSA BROWNSTEIN, ESQ.
22 Cortlandt Street, 16th Floor
New York, New York 10007
(212) 691-3333

CITY OF NEW YORK
CORPORATION COUNSEL
100 Church Street
New York, New York 10007

Special Counsel
Parking Violations Operations
Office of Legal Affairs
Department of Finance
66 John Street Room 104
New York, New York 10038

SUPREME COURT OF THE STATE OF NEW YORK
NEW YORK COUNTY

COMPLAINT

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AMY KRAKOW and GARY KRAKOW,

Index No.:

Plaintiffs,

-against-

THE CITY OF NEW YORK, POLICE OFFICER
KARANJA JEFFERSON, Shield # 12644, POLICE
OFFICER JOHN DOE #1, (name and number of who is
unknown at present), and POLICE OFFICERS JOHN
DOES #2-4 (names and number of who is unknown at
present), and other unidentified members of the New York
City Police Department, CITY MARSHAL DARSCH,
and the NEW YORK CITY MARSHALS.

Defendants.

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Plaintiffs Amy Krakow and Gary Krakow, by their attorney, ILISSA BROWNSTEIN, ESQ., as
and for the Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiffs' rights as secured by the laws of the State of New York and the United States Constitution. Plaintiffs were unlawfully arrested by the defendants. Plaintiffs were deprived of their state constitutional and common law rights and federal constitutional rights when the individually named police officer defendants and New York City Marshal unlawfully confined plaintiffs, caused the unjustifiable arrest of plaintiffs and malicious prosecution of plaintiffs.

PARTIES

2. Plaintiff Amy Krakow is a citizen of the United States and a resident of New York County in the State of New York.
3. Plaintiff Amy Krakow is a citizen of the United States and a resident of New York County in the State of New York.
4. POLICE OFFICER, KARANJA JEFFERSON, Shield # 12644 is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
5. POLICE OFFICER, KARANJA JEFFERSON, Shield # 12644 is being sued in his or her individual capacity and official capacity.

6. Police Officer John Doe #1 is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
7. Police Officer John Doe #1 is being sued in his individual capacity and official capacity.
8. New York City Police Officers John Does #2-9 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.
9. Police Officers John and Jane Does #2-9 are being sued in their individual capacity and official capacity.
10. NEW YORK CITY MARSHAL DARSCH is and was at all times relevant herein an, employee, and agent of the New York City Marshal Service.
11. NEW YORK CITY MARSHAL DARSCH is being sued in his or her individual capacity and official capacity.
12. At all times relevant herein, defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department and New York City Marshal Service, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department and New York City Marshal Service at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and New York City Marshal Service and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department and New York City Marshal Service.
13. At all times relevant hereto, defendant CITY OF NEW YORK, operated, maintained managed, supervised and controlled the New York City Police Department (NYPD) as part of and in conjunction with its municipal function.
14. Plaintiff in furtherance of his State causes of action filed a timely Notice of Claim against the CITY OF NEW YORK, in compliance with the Municipal Law Section 50.
15. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claim.
16. THE CITY OF NEW YORK held a 50(H) hearing examination of the Plaintiff.

STATEMENT OF FACTS

17. Plaintiff Amy Krakow is 63 years old. She has a Masters degree in Communications. She owned a public relations firm called Propaganda Marketing Communications.
18. Plaintiff Gary Krakow is 62 years old. He has a Masters in Journalism. He is an Emmy award winning journalist who is currently the Senior Technology Correspondent for The Street dot com, a website for investors.
19. On December 7, 2012 at 2328 12th Ave (at 130th Street) Plaintiffs were buying groceries at Fairway for a Chanukah party they were hosting.
20. At approximately 5pm Plaintiffs return to the private parking lot for Fairway where they were parked. They were informed their car would be towed without being showed any authority for such action.
21. Plaintiffs called the police. They waited in their parked car for the police to arrive.
22. Approximately four (uniformed & plain clothed) officers arrived. One officer approached Amy Krakow's side and told her to step out of the car, calling her "elderly."
23. One officer banged on the driver's side, where Gary Krakow was seated and said, "get the fuck out of the car." Both Plaintiffs stepped out of the car.
24. Amy Krakow asked if she could grab her belongings and the officer grabbed her right arm forcefully. She let out a little scream both in disbelief and also because he was hurting her. He took her by the arm and threw her to another officer who threw her against the police car. He stuck his knee in the back of her thigh and cuffed her roughly applying them tightly.
25. Amy Krakow sustained bruises to her right bicep, right upper arm, thigh and knee. Also bruising from handcuffs. The bruises lasted a week to ten days. In the police car the officers were taunting her for getting arrested.
26. Gary Krakow was thrown up against the police car. The officer twisted his arm, causing his right shoulder to pop and handcuffed him in such an awkward position that he could barely stand. He popped the shoulder back in two days later Two to three times a week his arm gets completely numb in his sleep and he also experiences periodic pain.
27. Plaintiffs were charged with obstruction of governmental administration.
28. They spent approximately 24 hours in jail before receiving a straight ACD on December 8, 2012. Their cases were dismissed and sealed on June 7, 2013.
29. A notice of claim was filed on February 4, 2013.

FIRST CAUSE OF ACTION:
FALSE ARREST/FALSE IMPRISONMENT

30. Plaintiffs repeat and reallege paragraphs 1 through 29 as if fully set forth herein.
31. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York and the United States Constitution. Defendant City Marshal violated his position by failing to notify Plaintiffs of his authority to tow their car. Defendant City Marshall lied to the police about what occurred prior to their presence at the scene. Defendants intended to confine plaintiffs and, in fact, confined plaintiffs, and plaintiffs were conscious of the confinement. In addition, plaintiffs did not consent to the confinement and the confinement was not otherwise privileged.
32. The individually named defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
33. The City, as the employer of the officer defendants, is responsible for their wrong doing under the doctrine of respondeat superior.

SECOND CAUSE OF ACTION:
ASSAULT

34. Plaintiff repeats and realleges paragraphs 1 through 33 as if fully set forth herein.
35. Defendants, their agents, servants and employees, acting within the scope of his employment, intentionally, willfully and maliciously assaulted plaintiff in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the plaintiff, and that such acts caused apprehension of such contact in the plaintiff.
36. Defendants were at all times an agent, servant, and employee acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
37. The City, as the employer of defendants, is responsible for his wrongdoing under the doctrine of respondeat superior.

**THIRD CAUSE OF ACTION:
BATTERY**

- 38. Plaintiff repeats and realleges paragraphs 1 through 37 as if fully set forth herein.
- 39. Defendants, their agents, servants and employees, acting within the scope of his employment, intentionally, willfully and maliciously battered plaintiff, when they, in a hostile and/or offensive manner struck plaintiff without his consent and with the intention of causing harmful and/or offensive bodily contact to the plaintiff and caused such battery.
- 40. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for his conduct.
- 41. The City, as the employer of defendants, is responsible for his wrongdoing under the doctrine of respondeat superior.

**FOURTH CAUSE OF ACTION:
NEGLIGENT HIRING, RETENTION, TRAINING, AND SUPERVISION**

- 42. Plaintiff repeats and realleges paragraphs 1 through 41 as if fully set forth herein.
- 43. At all relevant times hereto, defendants The City of New York had the duty to competently and sufficiently hire, train and retain within the Police Academy and at the Command, precinct and Patrol levels, the defendant Officers in the protection of the rights of the plaintiff under the laws of the State of New York. The City of New York had the duty to competently train the Marshals in how to lawfully execute a judgment with regard to towing a car.
- 44. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants individually named defendants, individuals who were unfit for the performance of police duties on December 7, 2012, at the aforementioned location.

**FIFTH CAUSE OF ACTION:
COMMON LAW NEGLIGENCE**

- 45. Plaintiffs repeat and reallege paragraphs 1 through 44 as if fully set forth herein.
- 46. Defendants owed a duty of care to plaintiffs.
- 47. Defendants breached that duty of care by falsely arresting plaintiffs.

48. As a direct and proximate cause of this unlawful conduct, plaintiffs sustained the damages hereinbefore alleged.
49. All of the foregoing occurred without any fault or provocation by plaintiffs.
50. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

**SIXTH CAUSE OF ACTION:
NEGLIGENCE INFLICTION OF EMOTIONAL DISTRESS**

51. Plaintiffs repeat and reallege paragraphs 1 through 50 as if fully set forth herein.
52. By the actions described herein, the individually named defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiffs and violated plaintiffs' statutory and common law rights as guaranteed plaintiffs by the laws and Constitution of the State of New York.
53. As a result of the foregoing, plaintiffs were deprived of liberty, and sustained great emotional injuries.
54. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

WHEREFORE, Amy Krakow and Gary Krakow, plaintiffs, demand a judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorney's fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law.

Dated: New York, New York
November 1, 2013

Respectfully Submitted:

By: 
ILISSA BROWNSTEIN, ESQ.
Attorney for Plaintiffs
22 Cortlandt Street (16th Floor)
New York, New York 10007
(212) 691-3333

TO: CITY OF NEW YORK
CORPORATION COUNSEL
100 Church Street
New York, NY 10007

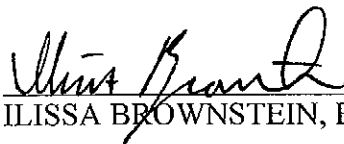
Special Counsel
Parking Violations Operations
Office of Legal Affairs
Department of Finance
66 John Street Room 104
New York, New York 10038

ATTORNEY'S VERIFICATION

ILISSA BROWNSTEIN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an attorney at the law firm of **ILISSA BROWNSTEIN, ESQ.**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is that Plaintiffs are temporarily residing outside the county wherein I maintain my office.

DATED: New York, New York
November 1, 2013



ILISSA BROWNSTEIN, ESQ.